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FILED
OREGON JUDICIAL DEPT
WASHINGTON COUNTY
2025 OCT 14 P 1:13

IN THE CIRCUIT COURT OF THE STATE OF OREGON

IN AND FOR WASHINGTON COUNTY

JUVENILE DEPARTMENT

In the Matter of: ALMIRA DAVIS, DOB: 06/23/2011 A Child	Case No.: 25JU04261 MOTHER'S DECLARATION CITING LACK OF JURISDICTION AND REQUIREMENT TO DISMISS PURSUANT TO ORCP 21 A(1)

COMES NOW Mother, AshLe' Penn, natural mother of the minor child Al-mira Davis, appearing specially and solely to challenge this Court's subject matter and personal jurisdiction. Mother asserts for the record that this Court must dismiss the proceedings as required under ORCP 21 A(1) and the mandatory provisions of ORS Chapter 419B for lack of personal and subject matter jurisdiction.

This assertion is based on the fact that the Court lacks jurisdiction over Mother because the State did not meet the statutory requirements necessary for jurisdiction under ORS Chapter 419B. Specifically, the State and the Oregon Department of Human Services (ODHS) Child Welfare have failed to properly serve a summons and petition on Mother as mandated by ORS 419B.815, 419B.839, and 419B.848. This failure is a statutory violation and an unlawful infringement of parental rights under Article I, Section 9 of the Oregon Constitution and the Fourth and Fourteenth Amendments to the United States Constitution. It is the Court's obligation to consider subject matter jurisdiction sua sponte and to dismiss cases where jurisdiction is not established properly, as indicated in Ekanger v. State ex rel. Mount Hood Community College, 181 Or App 44, 45 Or 172 (2002).

The obligation to dismiss exists regardless of whether the issue is raised by the parties, although Mother explicitly raises it here. This assertion is supported by the accompanying Memorandum of Law, evidence showing no proof of service and any other evidence as may be presented to the Court.

Mother reserves all constitutional and statutory rights, including claims under 42 U.S.C. § 1983 for violations of federally protected rights.

MEMORANDUM OF LAW IN SUPPORT OF MOTION TO DISMISS

I. INTRODUCTION

The Oregon legislature has a clear policy in child welfare proceedings: to employ protective social services to prevent abuse and ensure children's welfare while maintaining family integrity by stabilizing homes and

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enhancing parenting skills. This dual objective can only be achieved through procedures that guarantee parents receive notice and the chance to participate effectively in matters affecting their rights. Thus, Oregon law stipulates that proper service of a summons and petition is a mandatory prerequisite to a court's ability to exercise authority over a parent in dependency cases. The failure to serve Mother with a summons and petition renders these proceedings jurisdictionally void and undermines legislative objectives by depriving Mother of fundamental notice and participation rights critical to affirming her parenting capability and preserving family unity. Without proper service, the statutory structure aimed at balancing child safety and family preservation results in an unconstitutional removal of parental rights without due process.

II. STATEMENT OF FACTS

1. On May 7, 2025, Mother requested records from ODHS requesting the disclosure of any open assessments or founded allegations against mother related to open assessments or calls of concern. The agency has not yet fulfilled that records request more than five months later.
2. On September 6, 2025, at 5:40 PM, DHS Supervisor Heather Kitto sent a text message to Mother stating "...we can release custody to you," indicating DHS's determination that Mother was a fit and safe placement for the minor child Al-mira Davis.
3. Nineteen (19) minutes later, at 5:59 PM on the same date, the same DHS Supervisor retracted this decision via text message, citing "new information" regarding alleged suicidal statements by Al-mira, which she herself, denies ever making.
4. At 7:01 PM on September 6, 2025, DHS Supervisor Kitto sent an email documenting DHS's decision to assume protective custody and place the child in alternative care based on these alleged statements, claiming no ability to talk with Mother to evaluate her "protective capacities."
5. At no time has any summons or petition been served upon Mother as required by ORS. Chapter 419B.
6. The only document provided to Mother was a "Notice of Protective Custody" pamphlet, which does not fulfill the legal requirement for process service under Oregon law.
7. On September 8, 2025, this Court held a shelter hearing and made jurisdictional decisions impacting Mother's parental rights without acquiring jurisdiction over her.
8. Mother timely filed a written special appearance challenging jurisdiction, which was improperly rejected by the Juvenile Case Processing Clerk without identifying any statutory issue.

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9. Upon information and belief, no proof of service has been filed with this Court as required by ORS 419B.848.

10. During the relevant period, Mother was easily accessible to DHS staff via various communication methods, including in-person meetings at DHS offices, phone calls, and electronic correspondence, indicating that service was possible but not pursued

III. ARGUMENT

A. Subject Matter Jurisdiction Cannot Be Waived and Must Be Established by Compliance with Statutory Prerequisites

Subject matter jurisdiction is essential for a court's power to hear a case and cannot be waived by the parties. Ekanger v. State ex rel. Mount Hood Community College, 181 Or App 44, 45 Or 172 (2002). In juvenile dependency cases, the legislature has set forth specific statutory conditions that must be met before a court can assume jurisdiction over a parent.

B. Oregon Law Mandates Service of Summons and Petition as a Jurisdictional Prerequisite

ORS 419B.815 states: "A court may establish jurisdiction under ORS 419B.100 (Jurisdiction) only after service of summons and a true copy of the petition as provided in [the specified statutes]." The term "only" denotes an absolute requirement—jurisdiction cannot exist without appropriate service. The Oregon Court of Appeals has consistently ruled that statutory jurisdictional requirements are binding and cannot be ignored. State ex rel. Juv. Dept. v. Geist, 310 Or 176, 179, 796 P2d 1193 (1990). ORS 419B.839 specifies who must receive the summons, including: "The parents of the child regardless of legal or physical custody." This service requirement is mandatory and cannot be bypassed. ORS 419B.848 mandates that proof of service be submitted to the court, stating: "Proof of service of summons must be presented to the court by certificate of the server..." This creates a required filing process that generates a jurisdictional record.

C. The State Has Failed to Comply with Mandatory Service Requirements

The undisputed facts establish that:

1. No summons has been issued or served upon Mother;
2. No petition has been served upon Mother;
3. No proof of service could have been filed with this Court;
4. The "Notice of Protective Custody" pamphlet does not constitute legal service of process.

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These deficiencies are not mere technicalities but represent a total failure to meet the jurisdictional requirements set by the Oregon Legislature.

D. Due Process Requires Adequate Notice Before the State May Interfere with Fundamental Parental Rights

The Fourteenth Amendment mandates that parents must receive adequate notice before the state can interfere with their fundamental right to the care, custody, and control of their children. Stanley v. Illinois, 405 U.S. 645 (1972); Santosky v. Kramer, 455 U.S. 745 (1982). The Oregon statutory framework for service of process in juvenile dependency matters is designed to meet these constitutional due process standards. The State's failure to give proper notice violates both statutory and constitutional provisions.

E. The Saving Clause of ORS 419B.836 Cannot Remedy Total Service Failure

While ORS 419B.836 permits overlooking minor service defects that do not harm the respondent's rights or violate due process, this saving clause cannot rectify a total lack of service. The statute allows for amendments to defective service, not the establishment of jurisdiction where none exists. The Oregon Supreme Court stated in *Feves v. Department of Human Services*, 366 Or 298, 460 P3d 1209 (2020), that jurisdictional statutes must be applied strictly, and courts cannot assert jurisdiction not granted by the legislature.

F. Mother's Special Appearance Does Not Grant Jurisdiction

Mother's filing of this motion and its limited appearance to contest jurisdiction does not waive the jurisdictional objection or create a general appearance that would confer jurisdiction. *Laird v. Laird*, 91 Or 200, 178 P 972 (1919). A special appearance solely to challenge jurisdiction is permitted and does not rectify the State's failure to secure jurisdiction through proper service. As the Oregon Supreme Court held in *Feves v. Department of Human Services*, 366 Or 298, 460 P3d 1209 (2020), jurisdictional statutes must be strictly construed, and courts cannot exercise jurisdiction that the legislature has not granted.

G. The State Cannot Establish Jurisdiction Through Subsequent Contact

The fact that different state officials have contacted Respondent through other channels does not rectify the failure to properly serve process. The Oregon Legislature has defined specific methods for service in juvenile dependency cases, and these must be adhered to rather than relying on informal contact or alternative communication methods.

H. DHS's Administrative Decision to Retain Custody Lacks Statutory Authority and Due Process The September 6, 2025 emails from DHS Supervisor Heather Kitto reveals that DHS made unilateral decisions to retain

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protective custody and place the Al-mira in substitute care, outside of her Mother's custody, without statutory authority or due process.

1. Failure to Meet Imminent Danger Standard

Continued protective custody requires clear, specific evidence of an 'imminent threat of harm' based on current, solid facts. The email references only: (a) purported subjective statements by the child, and (b) DHS's claimed inability to communicate concerns with Respondent. Neither qualifies as evidence of imminent danger as mandated by Oregon law.

2. Procedural Due Process Violations

The email admits that DHS 'has been unable to discuss these concerns directly with you to understand your protective capabilities and response.' This acknowledgment shows that DHS made custody decisions without giving Respondent a fair chance to be heard—a key violation of due process rights.

3. Failure to Consider Less Restrictive Alternatives

Oregon law requires DHS to pursue all lesser interventions (safety plans, supervision, family preservation services) before the removal of a minor child from their home. The email contains no evidence that any alternatives to removal were considered, evaluated, or found inadequate.

4. Unauthorized Administrative Placement Decision

DHS cannot unilaterally decide to "make a plan to have Almira placed in alternate ODHS resource care" without judicial review and findings pursuant to ORS 419B.183. Administrative acts outside the judicial process, especially based on unverified allegations and communication failures, do not meet statutory standards for continued custody.

5. Contradictory Evidence

The minor child subsequently denied making the alleged suicidal statements during a monitored phone call with Respondent, after which DHS immediately terminated all communication between mother and child. This contradiction undermines the sole factual basis cited for retention of custody.

IV. CONCLUSION

The State's complete failure to serve a summons and petition upon Respondent renders these proceedings fundamentally void for lack of subject matter jurisdiction. This Court cannot proceed with dependency proceedings without first acquiring jurisdiction over Respondent through compliance with the mandatory statutory

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prerequisites.

The jurisdictional defects in this case are not minor technical failures but represent a complete absence of the authority necessary to proceed. No subsequent conduct can cure these fundamental defects.

V. PRAYER FOR RELIEF

WHEREFORE, Mother respectfully asserts that this Court must:

1. **GRANT** this Motion to Dismiss for lack of subject matter jurisdiction;
2. **DISMISS** all proceedings against Mother without prejudice;
3. **ORDER** the immediate return of the minor child Al-mira Davis to Mother pending proper initiation of proceedings with lawful service;
4. **DECLARE** that any orders previously entered without jurisdiction are void ab initio;
5. **AWARD** such other and further relief as this Court deems just and proper.

This 14th day of October 2025.

Without prejudice to any rights /s/ AshLe' Penn

Attorney Name

CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of the foregoing Motion to Dismiss and Memorandum of Law was served upon the following parties by the method indicated below:

Washington County District Attorney's Office

Juvenile Division

☐ Hand delivery

☐ U.S. Mail, postage prepaid

☒ Electronic service

☐ Other: _____

Oregon Department of Human Services

Child Welfare Office

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☐ Hand delivery

☐ U.S. Mail, postage prepaid

☒ Electronic service

☐ Other: _____

Court Appointed Special Advocate (if appointed)

☐ Hand delivery

☐ U.S. Mail, postage prepaid

☒ Electronic service

☐ Not applicable

Guardian ad Litem (if appointed)

☐ Hand delivery

☐ U.S. Mail, postage prepaid

☐Electronic service

☒ Not applicable

This 14th day of October 2025.

Without prejudice to any rights /s/ AshLe' Penn

Attorney Name

DENIED
the Oregon Rules of Civil
Procedure do not apply
to these proceedings

10/14-2025

Michele C Rini
Circuit Court Judge